

away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

9. 9:00 AM CASE NUMBER: C25-03006
CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Before the Court is Defendant John Muir Health's Motion to Strike. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

10. 9:00 AM CASE NUMBER: C25-03832
CASE NAME: JOYCE ESTEY VS. ALBERTO MALDONADO
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MALDONADO, ALBERTO
TENTATIVE RULING:

Off-calendar; motion withdrawn by moving parties on August 25, 2026.

11. 9:00 AM CASE NUMBER: C26-00575
CASE NAME: KEMI RANDOLF-GODDARD VS. SELECT PORTFOLIO SERVICING, INC
HEARING ON DEMURRER TO COMPLAINT
FILED BY: SELECT PORTFOLIO SERVICING, INC
TENTATIVE RULING:

Defendant Select Portfolio Servicing, Inc. ("Defendant") brings this demurrer to the complaint ("Complaint") of plaintiff Kemi Rosalia Randolph-Goddard ("Plaintiff"). Defendant challenges the entire Complaint and each of the four individual causes of action.

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to the first, second, and fourth causes of action, and **SUSTAINS** the demurrer to the third cause of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Gino D. Palmieri Decl., ¶¶ 3-4; Code Civ. Proc.,